

George Joseph vs S/O N.J.Joseph on 29 January, 2016

IN THE COURT OF THE LXVIII ADDITIONAL CITY CIVIL
AND SESSIONS JUDGE, BENGALURU CITY (CCH-69)

Dated this the 29th day of January 2016

PRESENT:

Sri.Shivaji Anant Nalawade, B.Com., LL.B.(Spl)
LXVIII Addl. City Civil and Sessions Judge,
Bengaluru City.

CRIMINAL APPEAL No.901/2014

APPELLANT/
ACCUSED : George Joseph
S/o N.J.Joseph,
Aged about 55 years,
Director, M/s Nereyeth Securities Pvt.
Ltd., No.7, 2nd Ulsoor, Walton Road,
Bengaluru - 560 001.

(By Sri.Vipin Kumar Jain and
Associates, Advocates)

- Versus -

RESPONDENT/
APPELLANT : T.Divyanathan
S/o Late. Thomas,
Aged about 68 years,
Residing at No.2/6,
Artillery Road, Ulsoor,
Bengaluru - 560 008.

(By Sri.R.Lakshmikantha Rao,
Advocate)

JUDGMENT

The appellant/accused has preferred this appeal under Sec.374 Cr.P.C. challenging the judgment passed by the IV Addl. Chief Metropolitan Magistrate, Bangalore City, in C.C.21841/2007 dated 02-08-2014, wherein she has been 2 Crl.Appeal.901/2014 convicted the accused for the offences punishable under Sec.403 and 506 of I.P.C. and sentenced to undergo Simple Imprisonment for 6 months for the offence under Sec.403 of I.P.C. and sentenced to pay fine of Rs.2,000/- and in default of payment of fine to undergo simple imprisonment for 2 months for the offence under Sec.506 of I.P.C.

2. The appellant was the accused and respondent was the complainant before the trial court. For the sake of convenience, rank of parties is referred to as stood before the court below.

3. The brief facts leading for disposal of this appeal are as follows:

Complainant one T.Divyanathan has lodged a private complaint under Sec.200 of Cr.P.C. before the trial court alleging that accused George Joseph, Director, M/s Nereyeth Securities Pvt. Ltd., No.7, 2nd Floor, Waltor Road, Bengaluru is the share broker and he induced him to part with his shares pertaining to Satyam Computer Services for trading. 25 shares worth Rs.69,185/- were sold by the accused for an amount of Rs.81,922.50 and the difference amount of Rs.12,737-50 was not paid by the accused to him. Subsequently, the accused purchased 25 shares of Satyam 3 Crl.Appeal.901/2014 Computers for Rs.1,60,716/- without his consent or authorization from him. The accused enriched himself to the tune of Rs.94,332-50 and inspite of repeated requests and demands, the accused failed to return the said amount and also threatened him if he continue to demand the said amount and thereby accused has committed the criminal breach of trust and misappropriated the amount of Rs.94,332-50 and when he questioned the accused, he gave life threat to him and committed the offence under Sec.406, 409, 420, 506(2) of I.P.C.

4. After complainant has lodged the private complaint before the trial court, the same is registered in PCR No.22652/2005 and referred the complaint for investigation to the respondent-Police under Sec.156(3) of Cr.P.C. thereafter respondent-Police have investigated the matter and filed 'B' Report. After Police have filed the 'B' Report, the complainant has filed Protest Memo thereafter trial court has recorded the sworn statement and taken cognizance of the offences under Sec.406, 409, 506(2) of I.P.C. and registered the case in C.C.21841/2007 and issued summons to the accused, accused appeared on summons and he has been enlarged on bail thereafter trial court has recorded the evidence before charge

4 Crl.Appeal.901/2014 and framed the charge against the accused for the offences under Sec.406, 409, 506(2) of I.P.C. and read-over the same to the accused in the open court, accused pleaded not guilty and claimed to be tried. Thereafter, trial court called upon the complainant to prove the guilt of the accused beyond reasonable doubt by examining the prosecution witnesses. Complainant examined himself as PW.1 and complainant in support of his case has examined one witness as PW.2, 6 documents came to be marked on behalf of the complainant as Ex.P1 to 6 and during the cross-examination of PW.1, 4 documents came to be marked on behalf of the accused as Ex.D1 to 4 thereafter trial court has recorded the recorded Sec.313 Cr.P.C. statement of accused to enable him to explain incriminating circumstances appearing against him in the prosecution witnesses. Accused denied the statement and further stated that he has no defence evidence thereafter trial court has posted the case for arguments. The trial court heard the arguments advanced by the counsel for the accused and complainant and acquitted the accused for the offences under Sec.406, 420 of I.P.C. and convicted the accused for the offence under Sec.403, 506 of I.P.C. The trial court has sentenced the accused to undergo simple imprisonment for 6 5 Crl.Appeal.901/2014 months for the offence under Sec.403 of I.P.C. and sentenced to pay fine of Rs.2,000/- and in default of payment of fine shall undergo simple imprisonment for 2 months for the offence under Sec.506 of I.P.C.

5. The accused being aggrieved by the judgment and order passed by the trial court in C.C.21841/2007 dated 02- 08-2014 came in appeal on the following among other grounds;

The trial court has gravely erred in convicting the accused being one of the Directors of M/s Nereyanth Securities Pvt. Ltd., No.7, 2nd Floor, Walton Road, Bengaluru, without being Company made as party in the private complaint. The trial court has erred in not considering the dictum laid down in Aneeta Hada Vs. M/s Godfather Tours and Travels that without including the Company its Director cannot be prosecuted. The judgment and conviction passed by the trial court is highly illegal, contrary to law, as no offence under Sec.403 of I.P.C. is proved beyond reasonable doubt by the complainant. The trial court without considering the materials produced by the accused which is at Ex.D1 to 4 and also without taking into account the detailed cross-examination of PW.1 and 2 wrongly convicted the accused. The judgment of conviction of the trial 6 Crl.Appeal.901/2014 court for the offence under Sec.506 of I.P.C. is also highly illegal, contrary to law. Accused has demonstrated before the trial court that offence under Sec.506 of I.P.C. is not proved beyond reasonable doubt by cross-examining PW.1, 2 and trial court has not considered that aspect and wrongly convicted the accused. The trial court has convicted the accused only on the presumption and assumptions without taking into account all the detailed cross-examination done on behalf of the accused. The trial court has erred in not considering the fact that the matter in dispute is already decided by the Arbitrator and Criminal Court has no jurisdiction to decide whether appellant is liable to pay the amount as claimed before the Arbitrator. So, the judgment of conviction under appeal is erroneous one. The trial court has failed to appreciate the fact that there is a delay of 5 years in lodging the complaint and complainant has not explained the said delay. The trial court has not taken into consideration the fact that the complainant has not mentioned the date, time and place of the alleged offence under Sec.506 of I.P.C. and also complainant-PW.1 has not stated the said date, place and time in his evidence also and trial court erred in not considering the said aspects. The trial court has gravely erred in not considering Ex.P6 7 Crl.Appeal.901/2014 produced by the complainant himself which discloses that the accused is not in due to the complainant. The trial court has failed to appreciate the fact that the complainant has filed complaint before the Bengaluru Stock Exchange Ltd., under the Arbitration jurisdiction and got the above dispute adjudicated before the Bengaluru Stock Exchange Ltd., after appointing the Arbitrator who arbitrate the dispute in the complaint for which cognizance was taken by the trial court. Further trial court has not taken into consideration the fact that the Arbitration award has come to conclusion that the complainant attempted to fabricate the contract note after he made application for arbitration in the Bengaluru Stock Exchange Ltd., and the Arbitrator held that it was very difficult for him to accept the version of the complainant that he has received the contract note late and that shares were purchased without his knowledge. Further gave finding that the complainant has purchased the share to adjust short delivery shares of 07-02-2000. Further Arbitrator in the award has held that, one Deepak Chabria was placed two orders for purchase of 25 shares each of Satyam Computers and that purchases were missing in the confirmation given to him. Later on verification of records by the accused, he confirmed 8 Crl.Appeal.901/2014 the missing of 25 shares purchased on 01-02-2000 to said Deepak Chabria and the said Deepak Chabria and the respondent were refused to cross-examine him thereafter Arbitrator came to the conclusion that the claim of the complainant is unwarranted, unjust, unreasonable and unsustainable and dismissed the claim of the complainant. The trial court has erred in not considering the fact that the Arbitration award becomes final and the said Arbitration Award not challenged before the proper Forum within the statutory period given under Arbitration Act. The trial court has not considered the admissions given by complainant-PW.1 in the cross-examination that he has filed the complaint before the trial court in order to recover the

lands incurred by him during the trading of the stock. The trial court has not considered the fact that the complainant has not disputed Ex.P6 and in Ex.P6 there is a mention that the accused is not due anything to the complainant and the trial court has not considered that aspect. The trial court has committed grave error in believing the evidence of PW.2 who is the wife of the complainant and in the complaint there is no mention that PW.2 has also accompanied the complainant to the offence of accused. On these grounds and among others the appellant/accused prayed for setting 9 Crl.Appeal.901/2014 aside the judgment under appeal and prayed for acquitting him for the offence under Sec.403, 506 of I.P.C.

6. This appeal was presented before the Hon'ble City Civil & Sessions Judge, Bengaluru, it is registered as Criminal Appeal No.901/2014 and made-over to this court for disposal according to law. After the receipt of the records this court has issued notice to the respondent and the respondent appeared through its counsel. Thereafter the LCR's were secured and they are before the court.

7. Heard the arguments advanced by the learned counsel for the appellant. Counsel for the respondent has filed written arguments. Perused the written arguments filed by the respondent.

8. The points that arise for my determination are as under:

1. Whether the trial court has committed any error in not appreciating the fact that without impleading the Company, its Director cannot be sued for the offence under Sec.403, 506 of I.P.C.?

2. Whether the trial court has not appreciated the oral evidence of PW.1, 2 and arrived at a wrong conclusion that accused has committed the offence under Sec.403, 506 of I.P.C.?

10 Crl.Appeal.901/2014

3. Whether trial court has committed any error in not considering Ex.D1 to 4-documents and arrived at a wrong conclusion?

4. Whether interference is necessary in the impugned judgment and sentence from this court?

5. What Order?

9. After hearing the arguments and perusal of documents placed before me, my findings to the above points are as follows:

Point No.1 to 4 : In the Affirmative;

Point No.5 : As per final order

for the following;

REASONS

10. POINT No.1 TO 4:

These points are inter-

connected, hence they are taken up for discussion together in order to avoid repetition.

11. In the present case trial court has acquitted the accused for the offence under Sec.406, 420 of I.P.C. and against the said acquittal the complainant has not preferred any appeal, so the said acquittal is final and conclusive. The burden is on the complainant to prove beyond reasonable 11 Crl.Appeal.901/2014 doubt that accused has committed the offence under Sec.403, 506 of I.P.C.

12. The complainant in order to prove his case, examined himself as PW.1 and PW.1 in his evidence stated that he know the accused, accused is a Stock Broker, he started Sale Trading business with the accused in the month of August-2009, he has purchased 25 shares of Satyam Computers on 01-02-2000. He has purchased the said shares through the accused by paying Rs.69,185/-. On 07-02-2000, he has sold the shares through accused broker within the settlement period. He has sold the shares of Rs.81,092.50 and he suppose to get the profit about Rs.12,000/-. Accused has not paid the said profit to him. He had earned profit of Rs.12,737.50 after selling the shares in the year 2000. Accused has not paid the said amount. Accused further transacted the above said shares for Rs.1,60,716.25 without his consent or authorization. Accused has enriched himself to the tune of Rs.94,332.50/- by selling his shares. He has given the shares for the purpose of trading and not for selling. Though he requested the accused to pay the amount, accused refused to pay the amount of Rs.94,332.50/- and when he went to the office of the accused on 14-07-2005, he requested 12 Crl.Appeal.901/2014 him to pay the money and at that time accused threatened him of dire consequences. The counsel for the accused cross- examined PW.1 and in the cross-examination PW.1 has admitted that he has filed the Arbitration proceedings with regard to the said 25 shares of the Satyam Computers. Further PW.1 has admitted that it is true that Award was passed in the said proceedings. Further PW.1 has admitted that Certified copy of Award shown to him is Award passed by the Arbitrator and the same is marked as Ex.D1 through PW.1. Further PW.1 has admitted that he has filed Review against the said order and also identified the Review Order shown to him as Ex.D2. Further PW.1 has admitted that he has approached the Consumer Forum in Complaint No.1038/2001 and identified the said complaint as Ex.D3. Further PW.1 has admitted that he has approached the Hon'ble High Court of Karnataka in W.P.No.45222/2003 and also identified the Certified copy of the Order passed in the said W.P. by the Hon'ble High Court as Ex.D4. Further PW.1 has admitted that, he approached one Vivekananda of Human Rights Counsel. Further PW.1 in his cross-examination admitted that it is true that the proceedings are arbitration in nature. Further PW.1 has admitted that the Notice was issued to him for 13 Crl.Appeal.901/2014 appointment of Arbitrator. Further PW.1 has admitted that, Ex-Captain Mr.T.S.Gopala Krishna was appointed as Arbitrator. Further PW.1 has admitted that an Award was passed and also admitted that dispute raised by him came to be dismissed. Further PW.1 has admitted that, he challenged the Award before the Consumer Court and also admitted that his complaint before the Consumer Forum also came to be dismissed and he has been directed to approach the proper Forum and his

Advocate has approached the Hon'ble High Court and further admitted that Writ Petition and Writ Appeal filed by him came to be dismissed. Further PW.1 has admitted that in Arbitration case one Deepak Chabriya was examined in the Arbitration proceedings and also admitted that he has not cross-examined him. Further PW.1 has admitted that earlier he was not knowing that trading in stock is a risky job and now he came to know the said fact. Further PW.1 in the cross-examination admitted that he has not challenged the arbitration proceedings before the appellate authority as per the advise of his counsel and he approached the Consumer Forum and complaint lodged by him before the Consumer Forum came to be dismissed. Further this witness has admitted that he has not challenged the Award before the 14 Crl.Appeal.901/2014 Appellate authority and as per the advise of his counsel he has filed the Writ Petition before the Hon'ble High Court and Writ Petition filed by him came to be dismissed.

13. Further PW.1 has admitted that in the Arbitration Award, finding is recorded at Para-6.2 that he has fabricated the remarks. Further PW.1 has admitted that he has not challenged the findings at Para-7.2 and 7.3 in the Award before the appellate authority but he has questioned it before the High Court and further admitted that the petition filed by him before the Hon'ble High Court came to be rejected. Further PW.1 in his cross-examination stated as under;

"It is false to say that at no point of time I had credit in my account with the accused. It is suggest that, at the end I receive Rs.5,526.65 as final and full settlement on 27-03-2000, I say that I should verify the records. If it is suggest that, I received the said amount by account payee cheque No.121852, I say that whatever cheque was given I have received but I have do not remember the cheque number."

Further PW.1 in his cross-examination stated as under;

"I do not remember that in respect of Ex.P6 between 12-02-2000 and 27-03-2000 I have received Rs.1,95,326.06. I do not remember that is Ex.P6 I should see the document. It is true that, Ex.P6 is the account extract. I do not remember the entries in Ex.P6. If it is suggested that I have produced Ex.P6 after understanding the document I say that I did not verify all the 15 Crl.Appeal.901/2014 entries. It is true that, as per Ex.P6 on 28-01- 2000 I have purchased 50 shares at the rate of Rs.148.50 paisa of Tata Iron and Steel Company."

Further PW.1 in his cross-examination admitted that;

"I have received the shares worth Rs.2,38,622/-. I do not remember that between 12-02-200 and 27-02-2000 I have received Rs.1,95,626.25 by way of cheque from the accused. I do not remember that between 28-01- 200 and 27-03-2000 I have received delivery of shares and also Rs.4,34,248.25 by encashing cheques. It is not true to suggest that I am refusing to see the entries in Ex.P6 for the period from 28-01-2000 to 27-03-2000 but I do not remember the said transactions because of lapse of 14 years. It is true that, Ex.P6 was with me for the past 14 years. It is true that, I did not dispute Ex.P6 accounts statement before the arbitrator. I do not remember that I did not dispute Ex.P6 account statement before the arbitrator because the closing balance was zero as per the

same."

14. The above admissions of PW.1 clearly goes to show that PW.1 is not disputed Ex.D1 to 4. Further PW.1 himself has produced Ex.P6 and Ex.P6 discloses that nothing was due to the complainant by the accused. Ex.P6 is the document produced by the accused himself and trial court has not looked into the said document and not mentioned anything in respect of the said document in the judgment. Further trial court has not stated anything in respect of Ex.D1 to 4-documents, which are marked in the cross-examination of 16 CrI.Appeal.901/2014 PW.1 and PW.1 has admitted the said documents. Ex.D1 is the Certified copy of Award passed by the Arbitrator. Ex.D1 is admitted by the PW.1 an Ex.D1 discloses that in respect of the alleged misappropriation of amount only, the complainant has moved for arbitration as per the Arbitration Clause and Arbitrator came to be appointed and matter was decided by the Arbitrator and claim of the complainant is dismissed as per Ex.D1-Award. Further as per Para-6.2, the Arbitrator has clearly stated in the Award as under;

"However, on verification of documents filed with the Exchange at the time of making the Arbitration application by the Applicant, the remark "received on 22/3/2K" was not there. (to this effect we have obtained the verification statement from the General Manager of the Exchange."

Further in the Para-7.3 in Ex.D1 it is recited as under;

"And also, as we have concluded in Issue No.2, that the purchase of 25 Satyam shares on 03-03-2000 is for adjusting against the short sale of 07-02-2000 of the applicant, there could not have been a purchase position in the same settlement and thereby claim of the complainant has been dismissed."

15. Further the accused has got marked Ex.D2 by confronting the same in the cross-examination of PW.1 and Ex.D2 clearly goes to show that the complainant has given 17 CrI.Appeal.901/2014 application before the Arbitrator to re-examine the Arbitration Award dated 21-05-2001 and the said application came to be rejected and Award dated 21-05-2001 is confirmed and the said fact is also admitted by PW.1. Further Ex.D3 is confronted to PW.1 and marked in the cross-examination of PW.1. PW.1 has admitted Ex.D3. Ex.D3 is the complaint given by the complainant before the II Addl. Consumer Dispute Redressal Forum, Bengaluru Urban District, Bengaluru and the same is numbered as Complaint No.1038/2001 and further the said complaint also discloses that the complainant has given complaint in respect of the alleged misappropriation amount in this case and the said complaint is dismissed by the II Addl. Consumer Dispute Redressal Forum, Bengaluru Urban District, Bengaluru on 07-08-2003 by passing the Order as per Ex.D3. Further Ex.D4 is also got marked through PW.1 in his cross-examination and Ex.D4 is goes to show that the complainant has filed Writ Petition No.45222/2003 and the same came to be dismissed and the said fact is also admitted by the complainant. Ex.D1 to 4 clearly goes to show that in respect of alleged misappropriation amount, the complainant has moved for arbitration as per the Arbitration Clause and Arbitrator has passed the Award and rejected the claim of the 18 CrI.Appeal.901/2014 present complainant. Against the said order, complainant has not preferred any Appeal. Complainant has also filed complaint before the Consumer Forum, the same also came to be dismissed. Further Ex.P6

discloses that, accused is not due anything to the complainant and perusal of the admissions of PW.1, Ex.P6 and Ex.D1 to 4 clearly goes to show that the complainant has failed to prove beyond reasonable doubt that accused has misappropriated Rs.12,737.50 and Rs.94,332.50 belongs to the complainant and committed the offence under Sec.403 of I.P.C.

16. Perusal of the judgment of the trial court clearly goes to show that the trial court has not considered the admissions of PW.1 and Ex.P6-document and Ex.D1 to 4- documents and concluded that accused has committed the offence under Sec.403 of I.P.C. which is erroneous.

17. Perusal of the complaint lodged by the complainant discloses that in the complaint the complainant has not stated on which date he went to the office of the accused and at what time the accused has given threat to him. Further in the complaint no where the complainant has stated that his wife accompanied him to the office of the accused. Complainant-PW.1 in his evidence stated that he 19 Crl.Appeal.901/2014 went to the office of accused on 04-07-2005 and requested to pay the money due to him and accused has threatened him of dire consequences. In the examination-in-chief also PW.1 has not stated at what time he went to the office of the accused. Further the counsel for the accused has cross-examined and counsel for the accused has suggested to PW.1 that the accused has not given any threat to the complainant.

18. PW.2 who is the wife of the complainant in her evidence has stated that she and her husband went to the office of accused on 14-07-2015 and there accused gave threat to the complainant. Complainant in the complaint or in his evidence no where stated that his wife accompanied him to the office of the accused and in presence of his wife accused gave threat to his life. In the present case, earlier to the lodging of private complaint, Arbitration proceedings, complaint before the Consumer Forum were filed and litigations were going on between the complainant and the accused, so the relationship between the complainant and the accused strained earlier to the lodging of private complaint. So, the evidence of interested witnesses is to be scrutinized very carefully and cautiously because in view of the strained relationship, lodging false complaint and giving false evidence 20 Crl.Appeal.901/2014 cannot be discarded. PW.2 is the wife of complainant and she is interested in the complainant, so her interested say will not help the complainant to prove that the accused gave threat to his life. So, the evidence of PW.1 and 2 will not prove beyond reasonable doubt that, accused gave threat to the life of complainant. Further in the present case, incident happened in the year 2000 and complainant has lodged private complaint on 10-08-2005, so there is delay in lodging the complaint and the same is not explained properly and the said delay creates suspicion regarding the incident and that aspect is not considered by the trial court. The observation of the trial court that the accused has not disputed regarding the threat given by him to the complainant is unacceptable one. If the entire cross-examination of PW.1 and 2 is perused, the same clearly goes to show that the accused has entirely disputed the incident, accused has denied the incident and giving threat by him to the complainant, so the observation of the trial court that accused has not denied regarding the threat given in the cross-examination of PW.1 and 2 is erroneous one. The observation of the trial court that the evidence of PW.1 and 2 prove beyond reasonable doubt that 21 Crl.Appeal.901/2014 accused has committed the offence under Sec.506 of I.P.C. is erroneous one.

19. The counsel for the appellant has contended that the complainant has lodged a private complaint against the accused as a Director of M/s Nereyeth Securities Pvt. Ltd., No.7, 2nd Floor, Walton Road, Bengaluru and the accused has not made M/s Nereyeth Securities Pvt. Ltd. as party, so the complaint against the accused only in the capacity of Director is not maintainable. In support of his submission counsel for the appellant has relied upon citation of Hon'ble Apex Court reported in 2008(2) Supreme Court 152 (Case: S.K.Alagh Vs. State of U.P. and others), wherein the Lordship of Hon'ble Apex Court have held as under;

"Criminal case lodged against the Director of the Company without making the Company as party is not maintainable."

20. In the present case in hand also the complainant has lodged the private complaint against the appellant/accused as Director of M/s Nereyeth Securities Pvt. Ltd. and complainant has not made the said Private Company as party. So, in view of the principles laid down by the Hon'ble Apex Court, as complainant has not made the 22 Crl.Appeal.901/2014 Company as party, the complaint against the Director is not maintainable.

21. The counsel for the respondent in the written argument has contended that, the Arbitrator appointed was in violation of SEBI directions and so the same cannot be looked into. This court is not sitting as appellate court against the Arbitration proceedings. The complainant has not challenged the arbitration Award before the proper authority. After arbitration Award, the complainant has moved the complaint before the Consumer Forum and there the complaint of the present complainant came to be dismissed with observation that, complaint is not maintainable and complainant may prefer appeal or revision before the appropriate authority. Thereafter also present complainant has moved before the Hon'ble High Court in Writ Petition No.45222/2003 and the same also came to be rejected for non-prosecution. Thereafter, the complainant has filed Writ Appeal and the same also came to be dismissed. So, the Award passed by the Arbitrator as per Ex.D1 is final and conclusive. This court cannot look into irregularity or illegality in the said Award as this court is not the appellate court on the Award passed as per Ex.D1, so the said contentions of the respondent cannot 23 Crl.Appeal.901/2014 be looked into in this case. Further the counsel for the respondent/complainant has also stated regarding the observations made in the Award and the said observations cannot be looked into by this court as this court is not appellate court on the said Award. The Award as per Ex.D1 is final and conclusive and in the said Award the Arbitrator has rejected the claim of the complainant/respondent and clearly held that the complainant/respondent is not due anything from the accused and the said Award is final and conclusive. The trial court has not considered the admissions of PW.1 and 2 while arriving at a conclusion that accused has committed the offences under Sec.403, 506 of I.P.C. Further trial court has not looked into Ex.D1 to 4 and Ex.P6-document and wrongly concluded that accused has committed the offence under Sec.403, 506 of I.P.C. So, the observations of the trial court that accused has committed the offence under Sec.403, 506 of I.P.C. is erroneous. The trial court has committed error in coming to the conclusion that the complainant has proved beyond reasonable doubt that accused has committed the offence under Sec.403, 506 of I.P.C. The evidence of PW.1 and 2, Ex.P1 to 6 and Ex.D1 to 4 will not prove beyond reasonable doubt that accused has committed the offence 24 Crl.Appeal.901/2014 under Sec.403, 506 of I.P.C. As per the well settled principles of criminal law, benefit of doubt goes

to the accused and in the present case accused is entitled for benefit of doubt. So, interference is necessary in the judgment of the trial court. Hence, for the above discussions, I answer point No.1 to 4 in the AFFIRMATIVE.

22. POINT No.5: In view of my findings on point Nos.1 to 4, and reasons stated therein, I proceed to pass the following:

ORDER The Criminal Appeal preferred by the appellant/accused is allowed.

The judgment of conviction and sentence passed by the trial court for the offences under Sec.403, 506 of I.P.C. is set aside.

Accused is acquitted for the offences under Sec.403, 506 of I.P.C. Bail bond of the accused stands cancelled forthwith.

25 CrI.Appeal.901/2014 Send back the LCR's along with the copy of judgment to the trial court.

(Dictated to the Judgment Writer, transcribed by her, corrected, signed and then pronounced by me in the open court on this the 29th day of January 2016).

(SHIVAJI ANANT NALAWADE) LXVIII Addl. City Civil and Sessions Judge, Bengaluru City